

**SUPERIOR COURT, STATE OF CALIFORNIA
COUNTY OF SANTA CLARA**

Department 10

Honorable Jeffrey B. El-Hajj

Blanca Than, Courtroom Clerk
191 North First Street, San Jose, CA 95113
Telephone: 408-882-2210

DATE: June 9, 2026 TIME: 9:00 A.M. / 9:01 A.M.

To contest the ruling, call (408) 808-6856 before 4:00 P.M.

Make sure to let the other side know before 4:00 P.M. that you plan to contest the ruling.
(Cal. Rules of Court, rule 3.1308(a)(1); Local Rule 8.D.)

****Please specify the issue to be contested when calling the Court and counsel****

9:00 A.M.

LINE #	CASE #	CASE TITLE	RULING
Line 1	25CV468482	Tai Le et al v. Vinh Hong	Click LINE 1 or scroll down for ruling.
Line 2	25CV474386	Alan Pineda v. Mike Counsil Plumbing, LLC	Click LINE 2 or scroll down for ruling.
Line 3	24CV445461	Oscar Hernandez Ochoa v. Johnny Yan et al.	<u>Parties ordered to appear.</u> Plaintiff’s motion to quash third party depositions for production of business records propounded by defendants. Notice is proper and the motion is unopposed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489.) A subpoena for business records “shall designate the business records to be produced either by specifically describing each individual item or by reasonably particularizing each category of item.” (Code Civ. Proc., § 2020.410, subd. (a).) A “party seeking to compel production of records from a nonparty must articulate specific facts justifying the discovery sought; it may not rely on mere generalities.” (<i>Board of Registered Nursing v. Superior Court</i> (2021) 59 Cal.App.5th 1011, 1039.) The subpoenas broadly seek all of plaintiff’s medical records from several medical providers, with no limitation as to time period or type of medical condition. Plaintiff has put some attributes of his physical condition in issue by bringing the complaint, but the subpoenas are overbroad as drafted. The motion is GRANTED. The court will prepare the order.

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Line 4	25CV465227	Austin Cortez v. David Yee	Click LINE 4 or scroll down for ruling.
Line 5	25CV465227	Austin Cortez v. David Yee	Click LINE 4 or scroll down for ruling.
Line 6	25CV465227	Austin Cortez v. David Yee	Click LINE 4 or scroll down for ruling.
Line 7	23CV427370	Boris Iofis v. David Lawver et al.	Defendants' motion to tax costs. Notice is proper and the motion is unopposed. Failure to oppose a motion may be deemed a consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c).) Failure to oppose a motion leads to the presumption that the non-moving party has no meritorious arguments. (<i>Laguna Auto Body v. Farmers Ins. Exchange</i> (1991) 231 Cal.App.3d 481, 489.) Judgment was entered in February 2025, based on a settlement agreement signed by the parties. The settlement agreement called for defendant David Lawver to pay plaintiff \$200,000 "in full and final satisfaction of all released claims." (Settlement agreement attached to 2/5/25 judgment, ¶ 1.) It further states, "The Parties to this Agreement agree to bear their own costs and attorneys' fees in connection with this agreement and the Action." (<i>Id.</i> , ¶ 16.) The judgment required defendants jointly and severally to "pay to Plaintiff BORIS IOFIS the settlement sum of \$200,000 forthwith and attorney's fees in the amount of \$1,800 (six hours at \$300/hour)." (Judgment, filed 2/5/25, ¶ 2.) Plaintiff filed an acknowledgement of "partial" satisfaction of judgment in November 2025, acknowledging he received \$215,179.62 from defendants. Plaintiff thereafter filed a memorandum of costs, seeking \$17,498.00 in post-judgment attorney fees. Plaintiff provides no evidence supporting the claimed fees, nor does he describe how that claim is consistent with the settlement agreement he signed. The November 2025 acknowledgement demonstrates that defendants have complied with the judgment in this case. Defendants' motion to tax costs is GRANTED. The court will prepare the order.